Summary of 2024 fee changes

The following tables summarises the fee changes that IP Australia will implement on 1 October 2024, at 12am AEST.

1. Changes to designs fees

Description of Fee	Old amount	New amount
Changes to designs application fees		
Application for one design		
• filing by preferred means	$250	$200
• filing by another approved means	$450	$400
Application for several designs, filing by preferred means		
• first design identified in the application	$250	$200
• each additional design identified in the application	$200	$150
Application for several designs, filing by another approved means		
• first design identified in the application	$450	$400
• each additional design identified in the application	$400	$350
Request to amend design application to identify further design		
• if the design application was filed by preferred means – for each further design identified	$250	$200
• if the design application was filed by another approved means – for each further design identified	$450	$400
Application by the Australian Olympic Committee to register an Olympic design under the *Olympic Insignia Protection Act 1987*	$450	$400
Changes to design examination fees		
Request for examination of registered design – made by registered owner	$420	$500
Request for examination of registered design – made by third party		
• amount payable by third party	$210	$250
• amount payable by registered owner	$210	$250

2. Changes to patents fees

Description of Fee	Old amount	New amount
Changes to international patents fees		
Fee for transmitting international application under the Patent Cooperation Treaty ('PCT')	$200	Repealed
Changes to patent application fees		
Provisional patent application ('provisional application')		
• filing by preferred means	$110	$100
• filing by another approved means	$210	$200
Innovation patent application		
• filing by preferred means	$180	$200
• filing by another approved means	$380	$400
Standard patent application ('standard application')		
• filing by preferred means	$370	$400
• filing by another approved means	$570	$600
Entry of PCT application into national phase		
• paying fee by preferred means	$370	$400
• paying fee by another approved means	$570	$600
Changes to patent examination and acceptance fees		
Asking Commissioner to direct patent applicant to request examination of a standard application	$100	$150
Request for examination of a standard application – if the Patent Office conducted international preliminary examination on it	$300	$350
Request for examination of standard applications in other cases	$490	$550
Request for examination of innovation patent – made by patentee	$500	$550
Request for examination of innovation patent – made by third party		
• amount payable by third party	$250	$275
• amount payable by patentee	$250	$275
Excess claims at first report — if there are more than 20 potential claims in relation to the examined complete specification:	New fee	
• for each of the 21st to the 30th potential claims	NA	$125
• for each potential claim in excess of 30 potential claims	NA	$250

Description of Fee	Old amount	New amount
Acceptance of a standard application:		
• minimum payable in all cases	$250	$300
• additional amount for excess claims in the complete specification at acceptance		Replaced by new adjusting amount for added potential claims
» for each of the 21st to the 30th claims (if any)	$125	
» for each claim in excess of 30 claims (if any)	$250	
• adjusting amount for potential claims added between first report and acceptance – if the maximum number of potential claims in relation to the complete specification exceeds 20 potential claims	New amount	
» for each of the 21st to the 30th potential claims added (if any)	NA	$125
» for each potential claim in excess of 30 potential claims added (if any)	NA	$250
Changes to continuation fees for standard applications and renewal fees for standard patents		
Sixth anniversary, fee paid by preferred means	$335	$345
Sixth anniversary, fee paid by another approved means	$385	$395
Seventh anniversary, fee paid by preferred means	$360	$380
Seventh anniversary, fee paid by another approved means	$410	$430
Eighth anniversary, fee paid by preferred means	$390	$420
Eighth anniversary, fee paid by another approved means	$440	$470
Ninth anniversary, fee paid by preferred means	$425	$465
Ninth anniversary, fee paid by another approved means	$475	$515
Tenth anniversary, fee paid by preferred means	$490	$540
Tenth anniversary, fee paid by another approved means	$540	$590
Eleventh anniversary, fee paid by preferred means	$585	$645
Eleventh anniversary, fee paid by another approved means	$635	$695
Twelfth anniversary, fee paid by preferred means	$710	$780
Twelfth anniversary, fee paid by another approved means	$760	$830
Thirteenth anniversary, fee paid by preferred means	$865	$945
Thirteenth anniversary, fee paid by another approved means	$915	$995
Fourteenth anniversary, fee paid by preferred means	$1,050	$1,140
Fourteenth anniversary, fee paid by another approved means	$1,100	$1,190

Description of Fee	Old amount	New amount
Fifteenth anniversary, fee paid by preferred means	$1,280	$1,385
Fifteenth anniversary, fee paid by another approved means	$1,330	$1,435
Sixteenth anniversary, fee paid by preferred means	$1,555	$1,675
Sixteenth anniversary, fee paid by another approved means	$1,605	$1,725
Seventeenth anniversary, fee paid by preferred means	$1,875	$2,010
Seventeenth anniversary, fee paid by another approved means	$1,925	$2,060
Eighteenth anniversary, fee paid by preferred means	$2,240	$2,390
Eighteenth anniversary, fee paid by another approved means	$2,290	$2,440
Nineteenth anniversary, fee paid by preferred means	$2,650	$2,815
Nineteenth anniversary, fee paid by another approved means	$2,700	$2,865
Changes to continuation fees for standard applications and renewal fees for standard patents		
Requesting an international-type search of a provisional application	$950	$1,100
Preliminary search and opinion on a standard application	$950	$1,100
Search of a standard application during its examination	$950	$1,100
Requesting conversion of an innovation application into a standard application	$190	$220
Filing an application or request for the Commissioner of Patents ('Commissioner') to: • determine how an application is to proceed, if there is a dispute between joint applicants • declare who is an eligible person in relation to an invention • give directions to co-owners on dealing with a patent or interest in it • declare a person's entitlement to a patent or a share in a patent, as a preliminary to rectifying the Register of Patents.	$600	$1,200
Filing notice of opposition	$600	$1,200
Requesting a hearing by the Commissioner	$600	$1,200
Appearing and being heard at an oral hearing – for each day or part day	$1,000	$2,000
Being heard by written submissions only	$600	$1,200
Applying for extension of term of a pharmaceutical patent	$2,000	$2,500

3. Changes to plant breeder's rights fees

Description of Fee	Old amount	New amount
Accreditation of a Qualified Person	$240	$350
Renewing accreditation of a Qualified Person	$240	$350
Lodging an application for grant of plant breeder's rights (PBR application)		
• paying fee by preferred means	$345	$400
• paying fee by another approved means	$545	$600
Examination of PBR application and growing trial		
• examination at a Centralised Testing Centre in Australia (CTC)	$920	$1,400
• examination of a plant variety with another variety at the same time and site in Australia (outside a CTC) – amount for each variety	$1,380	$1,600
• examination of a test growing in Australia otherwise	$1,610	$2,000
• examination based solely on overseas test data	$1,610	$2,000
Lodging an application for a declaration of essential derivation	$800	$850
Certificate Fee (for grant of PBR)	$345	$500
Annual renewal of granted PBR		
• paying fee by preferred means	$400	$600
• paying fee by another approved means	$450	$650

4. Changes to trade marks fees

Description of Fee	Old amount	New amount
Filing a statement of grounds and particulars (SGP) in an opposition to registration of a trade mark, or in an opposition to extension of protection to an IRDA:	New fee	
• for each of the fourth and further grounds (if any)	NA	$250
• for each of the 11th and further registered or protected trade marks that the opposed trade mark is claimed to be substantially identical with, or deceptively similar to (if any)	NA	$250
Requesting amendment of an SGP filed in an opposition to registration of a trade mark, or in an opposition to extension of protection to an IRDA:	New Fee	
• for a ground proposed to be added – if that ground would be the fourth or further ground in the SGP	NA	$250
• for a registered or protected trade mark proposed to be added – if that trade mark would be the 11th or further trade mark that the opposed trade mark is be claimed to be substantially identical with, or deceptively similar to	NA	$250
Applying for: • removal of a trade mark from the Register of Trade Marks for non- use • cessation of protection of a protected international trade mark for non-use	$250	$350
Requesting a hearing by the Registrar of Trade Marks	$400	Repealed
Being heard by written submissions only	$400	$500
Oral hearing by remote appearance – for each day or part day (for example, by videoconference)	$600	$700
Oral hearing in person – for each day or part day	$800	$700
Late filing of evidence in opposition proceedings	New Fee	$500

5. Changes to Trans-Tasman IP Attorney fees

Description of Fee	Old amount	New amount
Individual attorneys		
Annual renewal of registration as patent attorney	$400	$450
Annual renewal of registration as a trade marks attorney	$400	$450
Annual renewal of combined registration as patent and trade marks attorney	$600	$650
Annual renewal of registration as an incorporated patent attorney	$400	$450
Annual renewal of registration as an incorporated trade marks attorney	$400	$450
Annual renewal of combined registration as an incorporated patent and incorporated trade marks attorney	$600	$650
Applying to restore registration as patent attorney	$300	$350
Applying to restore registration as trade marks attorney	$300	$350
Applying to restore registration as incorporated patent attorney	$300	$350
Applying to restore registration as incorporated trade marks attorney	$300	$350